

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on April 23, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the rights of Access and Deletion against the GALICIAN HEALTH SERVICE (SERGAS) (hereinafter, the respondent), without their request receiving the legally established response. The complainant states that on March 13, 2024, and March 21, 2024, they requested access to their medical history from the respondent, and in the application registered on March 19, 2024, they requested the de-indexing of their data from search engines. They indicate that the respondent replied on April 23, 2023, that it was not appropriate to address their requests, concluding that they were abusive. According to the complainant, the aforementioned writings have not been answered; therefore, it cannot be concluded that their requests are repetitive and apply Article 12.5 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR).

SECOND: On July 8, 2024, this Agency resolved regarding the complaint filed by the complainant and their unattended access request, inadmissibly processing the complaint as follows:

"...Once the reasons presented by the respondent, which are part of the file, have been analyzed, this Agency considers that the denial of the request made by the complainant is in accordance with personal data protection regulations.

Therefore, in accordance with Article 65 of the LOPDGDD, the Director of the Spanish Agency for Data Protection AGREES to inadmit the complaint."

THIRD: The complainant filed a motion for reconsideration, which was resolved on October 24, 2024, favorably, leading to the current procedure with the following arguments:

"It has not been adequately proven or justified by the respondent that the deletion request is excessive, as it does not coincide with requests from other years, in which the aim was to de-index other competitive processes in which the name of the complainant also appeared.

Consequently, this request must be answered, and if the complainant's data continues to be published and its publication is no longer necessary due to the passage of time, it should be deleted. Conversely, if the publication of the complainant's data continues to be necessary, the request should be denied with justification.

Therefore, in this case, as it has not been proven that the requests of the complainant were excessive and repetitive, the motion for reconsideration should be upheld so that the legally established response is given to the exercised rights."

FOURTH: In light of the events on October 24, 2024, the original complaint, the motion for reconsideration filed by the complainant, and the resolution of that motion were forwarded to the respondent, allowing them a period of ten working days to present any allegations they deemed appropriate. The respondent informs that they have responded to the complainant and have sent them the access record to their electronic medical history and the reasoned denial of the deletion of the indicated list, as it is still valid and must be public; the de-indexing cannot be carried out as it is not a treatment for which the respondent is responsible. The respondent has provided documentation proving the communication sent to the interested party in response to their request.

FIFTH: After examining the document submitted by the respondent, it is forwarded to the complainant, allowing them a period of fifteen working days to make any allegations they consider appropriate, without submitting any allegations within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of remedying any infringement of the GDPR, including the power to "order the controller or processor to address requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These rights include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons if it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

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IV

Right of Access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data

subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right relates to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if not obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Right of Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

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a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;

b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and this is not based on another legal ground;

c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);

d) the personal data have been unlawfully processed;

e) the personal data must be erased for compliance with a legal obligation under Union or Member State law applicable to the controller;

f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to those personal data, or any copies or replications of them.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

a) for exercising the right to freedom of expression and information;

- b) for compliance with a legal obligation that requires the processing of data imposed by Union or Member State law applicable to the controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to make impossible or seriously impede the achievement of the objectives of that processing, or
- e) for the establishment, exercise, or defense of legal claims."

VI

Conclusion

In the case analyzed here, the claiming party exercised their right of Access and Erasure, and after the period established in the aforementioned regulations, their request received a response that this Agency considered adequate, and the claim was deemed inadmissible.

Later, the claiming party submitted a request for reconsideration which, once analyzed, was upheld and led to the current procedure. Now, having analyzed all the documentation provided by both parties, we find that the reason for the discrepancy is that the responding party has considered that the claiming party was exercising the right of access.

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and excessive suppression. This Agency, analyzing the documentation, observes that they cannot be understood as repetitive and excessive, as it concerns a new request distinct from the previous ones and not a reiteration of them. Therefore, a response must be provided, supplying the requested information if there is a legitimate reason for it, or it must be denied with justification if there is no legitimate reason.

The aforementioned regulations do not allow the request to be overlooked as if it had not been made, leaving it without the response that the responsible parties must issue, even in the event that there are no data of the interested party in the entity's files or even in those cases where the requirements are not met, in which case the recipient of the request is also obliged to require the correction of the observed deficiencies or, if applicable, deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in any case, using any means that justifies the receipt of the response.

In this case, however, it is noted that during the processing of the complaint that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the party being complained against has provided documentation proving the communication sent to the interested party regarding the right or informing about the decision made regarding the request. This response, therefore, occurs after the established deadline has been exceeded.

In this regard, it should be specified that the response that corresponds to be made cannot be expressed merely as part of an administrative procedure. Consequently, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information in the file with the regulations referred to in the preceding sections, it is appropriate to uphold the present complaint on formal grounds as the response was issued late, without requiring additional actions by the data controller to issue a new certification regarding the attention to the right.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD on formal grounds the complaint filed by A.A.A. against the GALICIAN HEALTH SERVICE (SERGAS). However, the issuance of a new certification by the complained party is not

warranted, as the response was issued late, without requiring additional actions by the responsible party.

SECOND: NOTIFY this resolution to A.A.A. and the GALICIAN HEALTH SERVICE (SERGAS).

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

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